

23BBCV03077 23BBCV03077

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Case Number: 23BBCV03077 Hearing Date: June 26, 2026 Dept: B

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES

CHOVAUN EVANS,

Plaintiff,

vs.

THE KNITTING FACTORY CLUB HOLLYWOOD, et al.,

Defendants.

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CASE NO.: 23BBCV03077

[TENTATIVE RULING]

COURT TO

HEAR FURTHER ARGUMENT ON DEFENDANT CIRCA.1926, INC.'S MOTION FOR SUMMARY JUDGMENT IS DENIED

DEFENDANT

ISAU GUEVARA DBA TOTAL TRUST MAINTENANCE'S MOTION FOR SUMMARY JUDGMENT IS GRANTED

Dept. B

8:30 a.m.

June 26, 2026

Background

On July 12, 2023, Plaintiff Chovaun Evans ("Plaintiff") fell into a drainage channel in the parking lot of the Federal Bar, suffering injuries.

On December 28, 2023, Plaintiff filed this action against Defendants The Knitting Factory Club Hollywood, Inc., Knitting Factory Entertainment, The Federal Bar, and Steve Simon for general negligence and premises liability.

On July 18, 2024, Plaintiff filed a doe amendment, naming Defendant Circa.1926, Inc. ("Circa") as a defendant.

On September 5, 2024, the Court dismissed Defendants The Knitting Factory Club Hollywood, Inc., Knitting Factory Entertainment, The Federal Bar, and Steve Simon without prejudice.

On January 31, 2025, Plaintiff filed three additional doe amendments, naming Defendants Total Trust Maintenance, Isau Guevara, and Isau Guevara dba Total Trust Maintenance ("Guevara") as defendants.

On April 1, 2026, Circa filed a motion for summary judgment. On April 2, 2026, Guevara filed a motion for summary judgment. On June 5, 2026, Plaintiff filed oppositions to both motions. On June 12, 2026, Guevara filed a reply. On June 15, 2026, Circa filed a reply.

Evidentiary Objections

The Court overrules

Plaintiff's evidentiary objections to the Declaration of Carl Mancuso, the Declaration of Chris Sherman, and the Declaration of Isau Guevara.

Guevara's evidentiary

objections to Plaintiff's evidence submitted in opposition to the motion are **OVERRULED** as to nos. 1-5; 8-14 and **SUSTAINED** as to nos. 6-7. (See *Sargenti v. City of Long Beach* (2026) 120 Cal.App.5th 702, 716 [Google Street View screenshots showing conditions that may have existed in the past are inadmissible without authentication or foundation].)

Circa's evidentiary

objections to Plaintiff's evidence supporting the opposition are **OVERRULED** as to nos. 1-7; 10 and **SUSTAINED** as to nos. 8-9. (Same as above.) The Court notes that Circa's evidentiary objections contain two "Objection No. 11." The Objection

No. 11 pertaining to the Declaration of Alex Zaretskiy is OVERRULED. The Objection No. 11 pertaining to the Google Street View Images is SUSTAINED.

Legal Standard

“[T]he initial burden is always on the moving party to make a prima facia showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) It is insufficient for the defendant to merely point out the absence of evidence. (Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.)

“Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Discussion

Plaintiff’s causes of action for general negligence and premises liability both sound in negligence. The elements for negligence are: (1) a legal duty owed to the plaintiff to use due care; (2) breach of duty; (3) causation; and (4) damage to the plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

“Landowners are liable for injuries caused by a lack of due care in the maintenance of their property.” (*Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207.) “However, a generally recognized exception is that landowners have no duty to warn of open and obvious dangers on their property because such dangers serve as warnings themselves.” (*Id.* at p. 1207-1208.)

“[A] landowner must exercise ordinary care by making reasonable inspection of the premises to ascertain whether any dangerous conditions exist on the property.” (Id. at p. 1208.) “If the dangerous condition is brought by third persons, then to impose liability the owner must have either actual or constructive knowledge of the dangerous condition or have been able by exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises. Actual knowledge is defined as express information of a fact, while constructive knowledge is that which is imputed by law.” (Ibid. [internal citations omitted].) “Typically, to charge an individual with constructive notice, he must have, actual notice of facts or circumstances which are sufficient to put a prudent person on inquiry as to the existence of the fact with respect to which he is charged with constructive notice.” (Id. at p. 1209.)

A. Circa's Motion

Circa meets its initial burden by showing Plaintiff cannot establish duty, breach, and causation, which are essential elements of Plaintiff's negligence-based causes of action.

It is undisputed that the subject drainage channel where Plaintiff fell existed at the property before Circa entered into its lease for the property and that Circa did not design, construct, or install the subject drainage channel. (SUMF ¶¶ 10 to 11.) Circa introduces testimony from Carl Mancuso (“Mancuso”), the Federal Bar's manager and later Circa's general manager, attesting that in the entire twelve-year period in which he worked at the Federal Bar, Circa never received complaints or reports of people tripping or falling in the drainage channel and Circa nor its cleaning crew ever did anything to alter the drainage channel. (Mancuso Decl., ¶¶ 6-7.) Circa offers images, taken the day after the incident, showing that the drainage channel is built with lighter material, likely concrete, contrasting with the darker asphalt of the surrounding parking lot. (Manusco Decl., ¶ 8; Exh. C.) Further, Plaintiff's deposition testimony establishes the parking lot was lit when the incident occurred, stating “it was light where we were, 'cause it was lights on the parking lot.” (Manusco Decl., ¶ 8; Exh. C.)

These facts negate essential elements of Plaintiff's negligence-based claims. Because Circa did not bring the drainage channel onto the property, to

impose liability on Circa, there must have been actual or constructive notice. (Jones, supra, 39 Cal.App.5th 1200 at p. 1208.) Considering there were no previous complaints, reports, or incidents with the drainage channel, there existed no facts or circumstances sufficient to put Circa on inquiry about a dangerous condition. (Mancuso Decl., ¶¶ 6-7; Jones, supra, 39 Cal.App.5th 1200 at p. 1209.) Additionally, Plaintiff's deposition testimony that Circa cites demonstrates an open and obvious hazard in that the drainage channel starkly contrasted with the parking lot's asphalt and the parking lot was lit when the incident occurred. (Manusco Decl., ¶ 8; Exh. C; Jones, supra, 39 Cal.App.5th 1200 at p. 1207-1208.)

Accordingly, Circa has met its initial burden on summary judgment. Therefore, the burden shifts to Plaintiff to show a triable issue of material fact.

While Plaintiff does not dispute that the drainage channel existed before Circa leased the property, Plaintiff argues Circa had notice of the dangerous condition. Plaintiff includes the expert testimony of Alex Zaretskiy, P.E. ("Zaretskiy"), who opines that inspections throughout Circa's time at the property would reveal that the channel was not maintained well, retained water rather than draining properly, and created a foreseeable tripping hazard. (Zaretskiy Decl., ¶ 8.) Zaretskiy further opines that water in the channel could obscure the channel's depth and elevation, making it difficult for pedestrians to gauge the condition safely. (Ibid.)

As Circa argues in Reply, however, Zaretskiy's declaration appears inconsistent with the facts presented regarding no incidents in 13 years related to the channel and further seems a bit afield in establishing notice in the face of those facts. The Court would like to hear Plaintiff's response to the Reply.

B. Guevara's Motion

Guevara meets his initial burden by showing Plaintiff cannot establish duty, breach, and causation, which are essential elements of Plaintiff's negligence-based causes of action.

Guevara performed cleaning services both inside and in the parking lot at the Federal Bar for years. (SUMF ¶¶ 8 to 9.) Guevara did not own, possess, or control any part of the property. (SUMF ¶ 24.) Guevara was never asked to or

performed repairs on the drainage channel. (SUMF ¶¶ 36-37.) Guevara's cleaning services were limited to pressure washing and sweeping, never maintenance or repair work. (Barilla Decl., Exh. 5; Manusco Deposition, 33:12-25; 34:1-4, 12-20.)

"In premises liability cases, summary judgment may properly be granted where a defendant unequivocally establishes its lack of ownership, possession, or control of the property alleged to be in a dangerous or defective condition. ... Without the 'crucial element' of control over the subject premises, no duty to exercise reasonable care to prevent injury on such property can be found." (Gray v. Am. W. Airlines (1989) 209 Cal.App.3d 76, 81 [internal citations omitted].)

It is undisputed that Guevara did not own, possess, or control any part of the property. (SUMF ¶ 24; Guevara Decl., ¶ 28.) Therefore, Plaintiff cannot maintain a cause of action for premises liability against Guevara.

As for general negligence, Guevara presents testimony that he never inspected, repaired, supervised, or provided warnings regarding the parking lot, nor was it asked to do any of those actions. (Guevara Decl., ¶¶ 12-21.) In fact, Guevara contends he never discussed the drainage channel with anyone. (Guevara Decl., ¶ 23.) Guevara's tasks at the property were limited to cleaning and minor handyman tasks. (Guevara Decl., ¶¶ 6-9.) Plaintiff's complaint provides no specific facts against Guevara to find a duty of care to Plaintiff. Notably, Guevara points to Plaintiff's responses to Guevara's special interrogatories where Plaintiff failed to provide any factual basis that Guevara created the condition causing the incident, knew of the condition, or failed to use ordinary care. (Barilla Decl., Exh. 7.) Guevara shows that he did not do service or repair work on the parking lot or inspect it. Moreover, Plaintiff's fall is unrelated to Guevara's power washing, and Plaintiff was not a party to Guevara's agreement with Circa.

Absent any duty or breach, Guevara has met his initial burden on summary judgment. Therefore, the burden shifts to Plaintiff to show a triable issue of material fact.

While Plaintiff does not dispute that Guevara did not own, possess, or control the property, Plaintiff argues Guevara voluntarily undertook responsibilities contributing to the dangerous condition encountered by Plaintiff, and is liable under the negligent undertaking doctrine. For negligent undertaking, Plaintiff

must show: (1) a defendant's failure to exercise reasonable care increased the risk of harm to the plaintiff, and (2) the plaintiff reasonably relied on defendant's undertaking." (The Irvine Co. LLC v. Superior Court (2023) 96 Cal.App.5th 858, 873) "The scope of any duty assumed depends on the nature of the undertaking." (Ibid.) However, Plaintiff's argument under this doctrine fails because Plaintiff presents no evidence that Guevara's power washing or cleaning services increased the risk of harm to Plaintiff or contributed to her fall. Plaintiff's expert contends the water in the drainage channel contributed to Plaintiff's fall, but Plaintiff does not establish that this water is connected to Guevara. (Zaretsky Decl., ¶¶ 8-10.) Also, while the evidence supports finding that Guevara performed small handyman tasks, the evidence does not support finding that Guevara had a larger maintenance responsibility at the property. (See Guevara Decl., ¶ 9.) Therefore, Guevara did not voluntarily undertake responsibility for the drainage channel.

Thus, Plaintiff fails to meet its burden of showing a triable issue of material fact.

Accordingly, Guevara's motion for summary judgment is GRANTED.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court